

STATE OF NEW YORK

11473--A

IN ASSEMBLY

May 20, 2026

Introduced by COMMITTEE ON RULES -- (at request of M. of A. Shimsky) --
read once and referred to the Committee on Local Governments --
committee discharged, bill amended, ordered reprinted as amended and
recommitted to said committee

AN ACT authorizing the town of Mount Pleasant to alienate and discontin-
ue the use of certain parklands

The People of the State of New York, represented in Senate and Assem-
bly, do enact as follows:

1 Section 1. Subject to the provisions of this act, the town of Mount
2 Pleasant, county of Westchester, is hereby authorized, acting by and
3 through its governing body, and upon such terms and conditions as deter-
4 mined by such governing body, to discontinue as parkland and alienate
5 the lands described in section three of this act for the purpose of
6 constructing housing.

7 § 2. The authorization contained in section one of this act shall be
8 effective only upon the condition that the town of Mount Pleasant dedi-
9 cate the lands described in section four of this act as parkland,
10 provided that the town of Mount Pleasant has never used such lands for
11 public open space or park purposes.

12 § 3. The parklands authorized by section one of this act to be alien-
13 ated are described as follows:

14 ALL that certain plot, piece or parcel of land situate, lying and
15 located in the Town of Mount Pleasant, County of Westchester, State of
16 New York and bounded and described as follows:

17 Beginning at a point formed by the division line between Lot 42, Block
18 A and the westerly side of Eastview Drive as shown on a map entitled
19 "Subdivision Map Section No. Two, Stonegate" dated Oct. 4, 1965 and
20 filed in the Westchester county Clerk's Office (Division of Land
21 Records) on June 7, 1966 as Map No. 14848, said point being the POINT OF
22 BEGINNING;

23 Thence from said point of beginning along Lot 42, North 73 degrees 35
24 minutes 27 seconds East, a distance of 270.00 feet;

25 Thence along a proposed lot line over property now or formerly Arden
26 Development #2 Corp. (Recreation Area), South 24 degrees 22 minutes 33
27 seconds East, a distance of 165.08 feet;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 Thence along Lot 43, Block A, South 67 degrees 17 minutes 46 seconds
2 West, a distance of 283.89 feet to a point on the westerly side of East-
3 view Drive;

4 Thence along said westerly side of Eastview Drive Northerly, a
5 distance of 195.01 feet along a non-tangent curve to the right of which
6 the radius point lies North 67 degrees 17 minutes 46 seconds East a
7 radius of 1,775.00 feet, and having a central angle of 6 degrees 17
8 minutes 41 seconds to the point and place of BEGINNING.

9 Containing 50,044 square feet or 1.1489 acres, more or less.

10 § 4. Prior to the discontinuance and alienation of parkland described
11 in section three of this act, the town of Mount Pleasant shall dedicate
12 as parkland such land described as follows:

13 ALL that certain plot, piece or parcel of land situate, lying and
14 located in the Town of Mount Pleasant, County of Westchester, State of
15 New York and bounded and described as follows:

16 Beginning at a point formed by the division line between Lot #1
17 (Parcel D), Lot #2 (Parcel B) and the northerly side of East Stevens
18 Avenue as shown on a map entitled "Subdivision Map with Utility Tie-Ins,
19 Kensico Preserve" prepared by CMG Engineering, Surveying and Landscape
20 Architecture, P.C. dated June 14, 2024, last revised June 27, 2025 and
21 filed in the Westchester county Clerk's Office (Division of Land
22 records) on Aug. 7, 2025 as Map No. 29903, said point being the POINT OF
23 BEGINNING;

24 Thence running along the northerly side of East Stevens Avenue, South
25 81 degrees 30 minutes 00 seconds West, a distance of 40.74 feet;

26 Thence South 81 degrees 41 minutes 00 seconds West, a distance of
27 179.35 feet to a point;

28 Thence over and across Lot #1 (Parcel D), North 06 degrees 42 minutes
29 43 seconds West, a distance of 227.49 feet to a point;

30 Thence North 81 degrees 41 minutes 00 seconds East, a distance of
31 220.09 feet to a point on the division line between Lot #1 (Parcel D)
32 and Lot #2 (Parcel B);

33 Thence South 06 degrees 42 minutes 43 seconds East, a distance of
34 227.36 feet to the northerly side of East Stevens Avenue, the point and
35 place of BEGINNING.

36 Containing 50,045 square feet or 1.1489 acres, more or less.

37 § 5. In the event that the fair market value of the parklands
38 described in section four of this act to be dedicated by the town of
39 Mount Pleasant pursuant to this act are not equal to or greater than the
40 fair market value of the parklands to be alienated as described in
41 section three of this act, the town of Mount Pleasant shall dedicate the
42 difference of the fair market value of the lands to be alienated and the
43 lands to be dedicated for the acquisition of additional parklands and/or
44 capital improvements to existing park and recreational facilities.

45 § 6. In the event that the town of Mount Pleasant received any funding
46 support or assistance from the federal government for the purchase,
47 maintenance, or improvement of the parklands set forth in section three
48 of this act, the discontinuance and alienation of such parklands author-
49 ized by the provisions of this act shall not occur until the town of
50 Mount Pleasant has complied with any federal requirements pertaining to
51 the alienation or conversion of parklands, including satisfying the
52 secretary of the interior that the alienation or conversion complies
53 with all conditions which the secretary of the interior deems necessary
54 to assure the substitution of other lands shall be equivalent in fair
55 market value and usefulness to the lands being alienated or converted.

56 § 7. This act shall take effect immediately.